IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 127
(CAA)-24(PB)/2018

IN THE MATTER OF:
Flipkart Digital Media Pvt. Ltd. &
Instakart Services Pvt. Ltd. .... Applicant/petitioner

Order under Section 230-232

Order delivered on 22.11.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S.K MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Petitioner	Mr. Kartikey Gupta, Adv.
For the RD	Mr. S.V. Chak, Sr. Technical Assistant
For the OL	Mr. Saubabh Sapra, Adv.
For the ITD	Ms. Easha Kadian, Standing Counsel, Ms. Lakshmi Gurung, Sr. Standing counsel & Mr. Dinesh Sharma, Adv.

ORDER

Mr. S.V. Chak, Sr. Technical Assistant states that in para 7 of the reply the RD has stated that the reply of the petitioner is satisfactory. On behalf of the transferee company in para 4 it has been stated that it undertakes to comply with the conditions of Section laid down under Section 72A of the IT Act a utilizing any unobserved depreciation and carry forward losses of the transferor company as available in the Income Tax Act. However, the objection raised by the Income Tax Department is that no such benefit is available at the first place to the transferee company. A clear affidavit needs to be filed that no benefit of Section 72A would be taken, if so advised. The needful shall be done within two weeks with a copy in advance to the counsel for the Income Tax Department.

List for further consideration on 06.01.2020.

Sd/-

(M.M. KUMAR)
PRESIDENT

Sd/-

(S.K MOHAPATRA)
MEMBER (TECHNICAL)

22.11.2019
Ritu Sharma